

complaint was filed by Plaintiffs on 4.16.25. The Second Amended Complaint was filed on 9.15.25. The Motion for Leave to File a Third Amended Complaint was filed on 6.29.26. The delay of almost a year by Plaintiffs to seek to include the proposed causes of action contained within the Third Amended Complaint, as well as failure to address the information discovered in July of 2025 in the SAC filed 4 months after said discovery, does not merit leave to amend. Additionally, the court finds that granting leave would be prejudicial to Defendants, as pointed out in the opposition. Plaintiffs seek to plead claims previously dismissed following a demurrer without leave to amend, and attempt to include two new defendants who were purchasers following an expungement order of the lis pendens. Lastly, while Plaintiffs' statement of additions and deletions filed on 8.05.26 does a more thorough job of complying with CRC 3.1324(a), the declaration of Plaintiff Scott fails to provide sufficient information pursuant to CRC 3.1324(b) for the court to grant leave to amend.

Plaintiffs' Motion for Leave to File a Third Amended Complaint DENIED.

Trial Setting Conference confirmed for 11.19.26.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2602291	BROWN VS INNOVATIVE AUTOMOTIVE HOLDINGS LLC	MOTION TO COMPEL ARBITRATION BY INNOVATIVE AUTOMOTIVE HOLDINGS LLC

Tentative Ruling: Upon the petition/motion of a party to an agreement to arbitrate, the court must grant a petition to compel arbitration unless it finds: no written agreement to arbitrate exists; the right to compel arbitration has been waived; grounds exist for revocation of the agreement; or litigation is pending that may render the arbitration unnecessary or create conflicting rulings on common issues. (CCP § 1281.2.) A proceeding to compel arbitration is in essence a suit in equity to compel specific performance of a contract. (*Freeman v. State Farm Mutual Auto Insurance Co.* (1975) 14 Cal.3d 473, 479.) The petition/motion to compel must set forth the provisions of the written agreement and the arbitration clause verbatim, or such provisions must be attached and incorporated by reference. (CRC rule 3.1330; *see also Condee v. Longwood Mgmt. Corp.* (2001) 88 Cal.App.4th 215, 218–19.) The party seeking arbitration must prove the existence of the arbitration agreement. (*Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC* (2015) 55 Cal.4th 223, 236.) The burden then shifts to the opposing party to prove any defense such as unconscionability. (*Id.*)

“In ruling on a petition to compel arbitration, the trial court may consider evidence on factual issues relating to the threshold issue of arbitrability Parties may submit declarations when factual issues are tendered with a motion to compel arbitration.” (*Engineers & Architects Assn. v. Community Development Dept.* (1994) 30 Cal.App.4th 644, 653.) In the summary proceedings on a motion to compel arbitration, “the trial court sits as a trier of fact, weighing all the affidavits, declarations, and other documentary evidence, as well as oral testimony received at the court's discretion, to reach a final determination.” (*Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972.)

The California Supreme Court recently explained in *Fuentes v. Empire Nissan, Inc.* (2026) 19 Cal.5th 93, 110, that relying on a policy favoring arbitration “as an interpretive

presumption” was “misplaced.” “[T]he policy “favoring” arbitration is not one of promoting arbitration over litigation, but instead of ensuring that arbitration agreements are not disfavored, i.e., that they are treated like other contracts.” (*Id.* citing *Quach v. Cal. Commerce Club, Inc.* (2024) 16 Cal.5th 562, 579.) Thus, there is no longer a presumption that the law favors arbitration over litigation in court.

FAA Applicability:

There is no dispute that the FAA applies to the AA in this case. The FAA governs arbitration in written contracts involving interstate commerce, and provides that arbitration agreements are valid, irrevocable, and unenforceable unless there are grounds that exist at law or in equity for the revocation of any contract. (9 USC § 2; *Rittmann v. Amazon.com, Inc.* (9th Cir. 2020) 971 F.3d 904, 909.) The FAA embodies a strong federal policy favoring arbitration. To assure uniform results as to arbitrability of disputes subject to the Act, conflicting state law is preempted under the Supremacy Clause. (*Southland v. Corp. v. Keating* (1984) 465 U.S. 1, 12.) The party claiming that the contract involves interstate commerce and the FAA preempts state law has the burden of proving that the underlying transaction involved interstate commerce. (*Woolfs v. Sup. Ct. (Turner)* (2005) 127 Cal.App.4th 197, 211-214.) Importantly, the FAA applies when an arbitration agreement expressly states that it is governed by the FAA. (*Aviation Data, Inc. v. Am. Express Travel Related Servs. Co., Inc.* (2007) 152 Cal.App.4th 1522, 1534-1535; *Victrola 89, LLC v. Jaman Properties 8 LLC* (2020) 46 Cal.App.5th 337, 355.) Here, the AA expressly states that it is governed by the FAA. (Dec. Cascia ¶ 10, Ex. “A”, ¶ 7.)

Existence of an Arbitration Agreement:

Defendant asserts that Plaintiff agreed to arbitrate his employment-related disputes when he hand dated and signed the AA as part of the onboarding documents when he was hired on 9/5/23. (Dec. Cascia ¶¶ 8-10, Ex. “A”.) Any writing must be authenticated before the writing, or secondary evidence of its content, may be received in evidence. (Evidence Code §1401; *People v. Valdez* (2011) 201 Cal.App.4th 1429, 1435.) “Authentication of a writing means (a) the introduction of evidence sufficient to sustain a finding that it is the writing that the proponent of the evidence claims it is or (b) the establishment of such facts by other means provided by law.” (Evid. Code § 1400; *People v. Valdez, supra.*)

Here, Plaintiff hand dated and signed the AA, which is undisputed. (Dec. Cascia ¶¶ 8-10, Ex. “A”; Dec. Brown ¶ 2.) The AA provides that the parties agree that “all disputes that might arise out of or be related in any way to my application for employment and/or employment by the Company” would be resolved by binding individual arbitration. (Dec. Cascia ¶ 10, Ex. “A”, p. 1 [p. 7 of 24.]) Plaintiff does not declare that he did not sign the AA. Instead, he does not “recall” signing it. Notably, Plaintiff has the burden to offer admissible evidence creating a factual dispute as to the authenticity of the signature. (*Iyere v. Wise Auto Group* (2023) 87 Cal.App.5th 747, 755.) When it comes to agreements with a physical signature, contentions that a plaintiff does not recall signing an arbitration agreement or was not given time to review the agreement is not sufficient to create a factual dispute as to whether a plaintiff signed the agreement. (*Id.* at 756-759.) Additionally, failure to read a contract also does not prevent the formation of a contract. (*Id.* at 759.)

While Plaintiff asserts that he does not remember seeing the arbitration agreement (Dec. Brown ¶ 2), this is not sufficient to create a factual dispute where a physical

signature exists. (*Iyere, supra.* at 756-759.) Plaintiff asserts no one explained the arbitration agreement to him. (*Id.* ¶¶ 4-6.) However, he fails to provide any authority that requires such an explanation, except in cases where a party does not read English. (*Caballero v. Premier Care Simi Valley, LLC* (2021) 69 Cal.App.5th 512, 519.) Plaintiff does not indicate that he cannot read English. Plaintiff provides no evidence to show that he did not sign the AA. He only indicates he was “not under the impression” that he could say “no” to signing any of the paperwork. (Dec. Brown ¶¶ 14, 19.) These statements lead to the inferences that he signed the AA. In any event, there is no evidence that anyone told Plaintiff that he needed to sign immediately; or, that he attempted to ask for additional time.

Unconscionability:

Plaintiff argues that the AA is both procedurally and substantively unconscionable. A contract is unenforceable if it is unconscionable. (Civil Code §1670.5.) Under California law, “[i]f the court as a matter of law finds the contract or any clause of the contract to have been unconscionable at the time it was made the court may refuse to enforce the contract, or it may enforce the remainder of the contract without the unconscionable clause, or it may so limit the application of any unconscionable clause as to avoid any unconscionable result.” (Civil Code § 1670.5(a); see *Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 114.) It should be noted that the FAA limits state unconscionability rules that facially discriminate against arbitration. (*Sonic-Calabasas A, Inc. v. Moreno* (2013) 57 Cal.4th 1109, 1143.)

“[T]he doctrine of unconscionability has both a procedural and a substantive element, the former focusing on oppression or surprise due to unequal bargaining power, the latter on overly harsh or one-sided results.” (*Sanchez v. Valencia Holding Co.* (2015) 61 Cal.4th 899, 910.) Both elements must be present in some degree in order for a court to exercise its discretion to refuse to enforce a contract or clause under the doctrine of unconscionability. (*Armendariz, supra*, 24 Cal.4th at 114.) Because unconscionability is a contract defense, the party asserting the defense bears the burden of proof. (*Sanchez, supra*, 61 Cal.4th at 911.)

Plaintiff argues that the AA is procedurally unconscionable. “‘Procedural unconscionability’ concerns the manner in which the contract was negotiated and the parties’ circumstances at that time. It focuses on the factors of oppression or surprise. This element is generally satisfied if the agreement constitutes a contract of adhesion.” (*Id.*, citing *Nyulassy v. Lockheed Martin Corp.* (2004) 120 Cal.App.4th 1267, 1280-1281.) Adhesion contracts are “standardized contracts drafted by a party of superior bargaining power and presented to the weaker party on a take-it-or-leave-it basis”. (*Id.*)

Plaintiff asserts the AA is a contract of adhesion. There is no dispute that Defendant has superior bargaining power in contrast to Plaintiff. The AA was a pre-printed, standardized form presented to Plaintiff with a packet of other onboarding documents. (Dec. Brown ¶ 2.) Plaintiff asserts that the AA was not explained to Plaintiff (that he would be giving up a fundamental right - his right to a jury trial) and he had no opportunity to negotiate the terms of the AA. (*Id.* ¶¶ 4, 12.) He also asserts he was “not under the impression” that he could say “no” to signing any of the paperwork and still keep the job. (Dec. Brown ¶¶ 14, 19.)

Defendant points out that Plaintiff relies on *OTO, LLC v. Kho* (2019) 8 Cal.5th 111, and argues it applies here. However, Defendant points out important factual distinctions including that Mr. Kho was approached with a stack of documents, instructed to sign

immediately, and was “hovered” over while he did so. (*Id.* at 118, 127-128.) Mr. Kho was also not a native English speaker and did not have a meaningful opportunity to review the agreement. *Id.* at fn. 8.)

Here, Plaintiff speaks English. Mr. Cascia did not hover over him telling him to sign immediately. The AA is a stand-alone document with a warning directly over the signature line stating “DO NOT SIGN UNTIL YOU HAVE READ THE ABOVE ACKNOWLEDGEMENT AND AGREEMENT.” (see Dec. Cascia ¶ 10, Ex. “A”; see *Ayala-Ventura v. Sup. Ct. of Fresno Cnty.* (2026) 119 Cal.App.5th 241, 254 [no surprise].) In addition, Plaintiff’s arguments cannot be reconciled with “well-established principles of contract law and common sense.” Employers do not have any obligation to highlight the arbitration clause, and any state law that provides for such would be preempted by the FAA. (*Sanchez, supra.* 61 Cal.4th at 914.) Further, “it is generally unreasonable ... to neglect to read a written contract before signing it.” (*Id.* at 915.)

Plaintiff does not contend anyone told him to sign without review, imposed a deadline, or other time constraint, prevented him from asking questions, that he tried to negotiate or modify the AA and was denied that opportunity. While this AA is a contract of adhesion, the degree of procedural unconscionability is minimal.

Plaintiff also addresses substantive unconscionability, which focuses on the terms of the agreement and whether those terms are so unduly harsh or unreasonably one-sided as to “shock the conscience.” (*Marin Storage & Trucking, Inc. v. Benco Contracting & Eng.* (2001) 89 Cal.App.4th 1042, 1055.) It should also be noted that “a sliding scale is invoked whereby the more procedurally oppressive the arbitration clause is, the less evidence of substantive unconscionability is required to warrant the conclusion that the agreements to arbitrate are unenforceable.” (*McManus v. CIBC World Markets Corp.* (2003) 109 Cal.App.4th 76, 91.)

Plaintiff argues that the AA contains a high degree of substantive unconscionability because it contains terms demonstrating a lack of mutuality. “A lack of mutuality exists when an arbitration agreement expansively defines who is to be bound by the agreement on one side, but restrictively defines who is bound by it as to the other side.” (see *Cook v. Univ. of So. Cal.* (2024) 102 Cal.App.5th 312, 326.) In *Cook*, the Court noted that the agreement required Cook to arbitrate any and all claims against USC or any of its related entities but, did not require those related entities to arbitrate their claims against Cook. (*Ibid.*) Plaintiff argues that here, as in *Cook*, the AA defines the parties as the “Company” to include its parent, subsidiaries, affiliates, customers, or client entities, etc. on one side, and Plaintiff as employee on the other, which does not encompass a reciprocal obligation.

In the Reply, Defendant contends that in the context of this AA, it is expressly limited to employment-related disputes, which does not reflect overbreadth. (see *Cocom v. ABM Aviation, Inc.* (2026) 179 F.4th 1168, 1176-1177.) Nonetheless, the subject AA has some of the overbreadth issues found in *Cook, supra.* because it requires Plaintiff to arbitrate claims against many non-parties but does not require them to arbitrate claims against him. Notably, the present AA is limited to claims relating to employment making it narrower than *Cook*. While *Ayala-Ventura* was limited to claims against other employees or agents “*in their capacity as such*”, there is no similar restriction here as to employees or agents of Defendant. (*Ibid.* citing *Ayala-Ventura, supra.* at 258.) Thus, the subject AA is broader than in *Ayala-Ventura* but narrower than those in *Cook*, making it unconscionably broad, but not to the degree of the agreements in *Cook*.

In sum, the AA is minimally procedurally unconscionable as discussed above, and moderately substantively unconscionable to the extent that it is overbroad and lacks

mutuality, requiring Plaintiff to arbitrate claims against individuals affiliated with Defendant who are not obligated to arbitrate claims against him.

Severance:

Any provision of the agreement that is deemed unconscionable may be severed to preserve the enforceability of the remainder of the Arbitration Agreement. (*Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal. 4th 83, 124). “[I]f the contract contains a severance clause, the court should take it into account as an expression of the parties’ intent that an agreement curable by removing defective terms should otherwise be enforced.” (*Ramirez v. Charter Communications, Inc.* (2024) 16 Cal.5th 478, 517.) Here, the AA provides: “If any term or provision or any portion of this Agreement is deemed invalid or unenforceable, it shall be severed and the remainder of this Agreement shall be enforceable.” (Dec. Cascia ¶ 10, Ex. “A”, ¶ 9 [p. 9 of 24.]) As indicated above, there is a moderate degree of substantive unconscionability, which can be cured by severance or restriction. The provision requiring arbitration of claims against others can be restricted to claims against them in their capacity as agents or employees of the Company and arising out of the employment relationship between Plaintiff and the Company.

Defendant’s Request for Judicial Notice GRANTED.

Defendant’s Evidentiary Objections to Declaration of Montrell Brown the court DECLINES to RULE.

Defendant’s Motion to Compel Arbitration GRANTED with modification.

The provision requiring arbitration of claims against others is restricted to claims against them in their capacity as agents or employees of Defendant and arising out of the employment relationship between Plaintiff and Defendant.

Case stayed pending completion of arbitration.

Status hearing re arbitration is set for 2.18.27.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2605426	BURRTEC WASTE AND RECYCLING SERVICES LLC VS HERITAGE HAULING LLC	MOTION FOR PRELIMINARY INJUNCTION BY BURRTEC WASTE AND RECYCLING SERVICES LLC

Tentative Ruling: The purpose of a preliminary injunction is to preserve the status quo pending trial on the merits. In order to issue a preliminary injunction, the Court must balance the parties’ interests. In balancing the parties’ interests, the Court must exercise discretion “in favor of the party most likely to be injured . . .” (*Robbins v. Superior Court* (1985) 38 Cal.3d 199, 205.) The Court is to consider two interrelated factors: (1) the injury to plaintiff in absence of the injunction verses the injury the defendant is likely to suffer if an injunction is issued; and (2) is there a reasonable probability that plaintiffs will prevail on the merits at trial. (*Shoemaker v. County of Los Angeles* (1995) 37 Cal.App.4th 618, 633; *Robbins, supra*, 38 Cal.3d at 206.) “The trial court’s determination must be guided by a ‘mix’ of the potential-merit and interim-harm factors; the greater the plaintiff’s showing